

claude-windows / 068560d3-1ca2-4387-981a-d2d6bca55414

Metadata

- Source: `claude-windows`
- Kind: `claude`
- Source file: `C:\Users\avidu\.claude\projects\C--Users-avidu-Projects-badminton-highlight-indexer\068560d3-1ca2-4387-981a-d2d6bca55414\subagents\workflows\wf\_47057438-9c9\agent-afe0ef4bb67f34e89.jsonl`
- SHA-256: `11012ae968747da41b770c9e9c1b6adf5eb9c1ffe2895366b37d911a9e63823e`
- Source modified: `2026-06-16T03:01:03+00:00`
- Imported at: `2026-07-05T16:48:28+00:00`
- project: `wf\_47057438-9c9`
- session_id: `068560d3-1ca2-4387-981a-d2d6bca55414`

Transcript

1. user (2026-06-16T02:57:43.897Z)

You are a SKEPTICAL second lawyer. Try to REFUTE or materially QUALIFY the bottom line below using authoritative sources. Look for the strongest counter-authority, jurisdictional exceptions, and ways an over-confident reading would get the client in trouble. Default to 'qualified' or 'refuted' if there is genuine doubt.

METHOD: Use WebSearch and WebFetch to find and cite AUTHORITATIVE sources (statutes, case law, official regulator guidance, reputable legal commentary). Load them first if needed via ToolSearch with query 'select:WebSearch,WebFetch'. Cite real URLs. If you cannot fetch a source, mark that claim's confidence 'low' and set webUsed=false. Do NOT fabricate citations ? an honest 'unverified' beats an invented case name or URL.

QUESTION KEY: contract-tos-tradesecret

BOTTOM LINE TO ATTACK: Committing derived data is a CONTRACT problem (independent of copyright) whenever the data was obtained under an enforceable Terms of Service that bars scraping/extraction/redistribution/commercial reuse ? and post-Van Buren that contract route is precisely what platforms rely on, because the CFAA no longer reaches mere purpose-violations of accessible/public data. Two thresholds decide whether the ToS actually bites: (1) Was there an account/login or clickwrap 'I agree'? If yes (hiQ; any logged-in or YouTube-API/account user), the ToS binds and scraping + redistributing a derived dataset is breach of contract even if every clip is non-copyrightable or fair use. If the data was scraped purely logged-out from public pages with only a browswrap link (Meta v. Bright Data), the contract may not bind at all. (2) The redistribution step ? committing the dataset to a public repo ? is the highest-risk act, since most ToS independently bar 'distribute'/commercial reuse and it's what turns tolerated scraping into an enforced breach. CONVERSELY, when the corpus is the OWNER'S OWN recordings, there is no third-party contract to breach and the analysis flips to trade secret: the data is a protectable competitive moat under 18 U.S.C. § 1839 only if kept secret with reasonable measures AND it derives value from not being generally known ? so publishing it (the very act of committing it publicly) forfeits that moat. Net rule for the repo: third-party-sourced derived data that was obtained under a ToS-bound relationship should NOT be committed publicly (contract/redistribution risk that copyright analysis won't catch); owner-recorded derived data is the owner's to publish or protect, where the only thing at stake is the trade-secret moat, not anyone else's contract.

SUPPORTING FINDINGS (JSON): [{"claim": "A platform's Terms of Service is an enforceable CONTRACT, so violating an anti-scraping clause can be breach of contract EVEN WHERE the CFAA and copyright claims fail ? this is the central 'contract binds when copyright doesn't' point. In hiQ v. LinkedIn the Ninth Circuit twice held scraping PUBLIC data likely does not violate the CFAA, yet on remand the district court (Nov 4, 2022) granted LinkedIn summary judgment on BREACH OF CONTRACT because hiQ's automated scraping and fake-account 'turker' activity violated LinkedIn's User Agreement; the case settled with a \$500,000 payment and an injunction against future scraping.", "support": "LinkedIn's User Agreement barred 'Use manual or automated software, devices, scripts, robots, other means or processes to access, scrape, crawl or spider the Services.' The court found hiQ 'breached LinkedIn's user agreement both through its own scraping of LinkedIn's site and using scraped data, and through turkers' creation of false identities.' Contract law supplied the enforcement mechanism after the CFAA route

closed.", "sourceName": "Privacy World (Squire Patton Boggs) ? 'Federal Court Rules in Favor of LinkedIn's Breach of Contract Claim'", "sourceUrl": "https://www.privacyworld.blog/2022/11/federal-court-rules-in-favor-of-linkedins-breach-of-contract-claim-after-six-years-of-cfaa-data-scraping-litigation/", "confidence": "high"}, {"claim": "Van Buren v. United States (2021) narrowed the CFAA: 'exceeds authorized access' covers only accessing files/areas of a system that are entirely OFF-LIMITS to the user, NOT merely using accessible information for a prohibited purpose. This is WHY violating a ToS purpose-restriction (e.g. 'no scraping', 'no dataset-building') is generally NOT a federal computer-crime, pushing platforms toward contract law to police scraping of otherwise-accessible/public data.", "support": "6-3 holding: an individual 'exceeds authorized access' only by obtaining information located in areas of the computer 'that are off limits to him.' Van Buren used valid credentials but for a prohibited purpose; that was not a CFAA violation. Policy-based access restrictions (like ToS) thus largely fall outside the CFAA after Van Buren.", "sourceName": "Van Buren v. United States, No. 19-783 (U.S. June 3, 2021) ? slip opinion", "sourceUrl": "https://www.supremecourt.gov/opinions/20pdf/19-783_k53l.pdf", "confidence": "high"}, {"claim": "Whether a ToS BINDS at all turns on the user/account relationship. In Meta v. Bright Data (N.D. Cal., Jan. 23, 2024, Judge Chen) the court granted the scraper summary judgment: Meta's Terms 'do not bar logged-off scraping of public data; perforce [they do] not prohibit the sale of such public data.' A scraper accessing PUBLIC pages while LOGGED OUT is not a 'user' bound by the contract, and once an account is terminated the platform cannot bind the former user to ongoing scraping restrictions. This is the decisive contrast with hiQ, where hiQ HAD accounts/agreed to the User Agreement.", "support": "Judge Chen: 'there is a strong and compelling argument that Bright Data was not using Facebook as contemplated by the Terms when it scraped public data while not logged-in.' Meta had deliberately removed older language binding 'non-subscribing visitors,' so only account-holders were bound. The court also refused to read survival clauses as perpetual lifetime restrictions. Meta dismissed its claim rather than appeal.", "sourceName": "Eric Goldman, Technology & Marketing Law Blog ? 'Bright Data Scores Major Victory in Web-Scraping Dispute with Meta'", "sourceUrl": "https://blog.ericgoldman.org/archives/2024/01/game-on-bright-data-scores-major-victory-in-web-scraping-dispute-with-meta-guest-blog-post.htm", "confidence": "high"}, {"claim": "Even when a ToS technically applies, enforceability hinges on contract-formation: courts routinely enforce CLICKWRAP (affirmative 'I agree' click) but are reluctant to enforce BROWSEWRAP (terms merely linked, deemed accepted by continued use) absent reasonable/inquiry notice and manifestation of assent. So a pure logged-out scraper who never clicked 'I agree' may face only a weak browsewrap argument ? whereas an API consumer or account-holder who clicked through is firmly bound.", "support": "Courts 'apply traditional principles of contract law and focus on whether the plaintiffs had reasonable notice of and manifested assent.' Clickwrap is 'routinely found enforceable' because of affirmative assent; courts are 'reluctant to enforce browsewrap agreements because users are frequently left unaware that contractual terms were even offered,' enforcing them only with conspicuous notice or 'inquiry notice.'", "sourceName": "Crowell & Moring ? 'Recent Court Rulings Provide Warnings on the Use of Browsewrap Agreements'", "sourceUrl": "https://www.crowell.com/en/insights/client-alerts/recent-court-rulings-provide-warnings-on-the-use-of-browsewrap-agreements", "confidence": "high"}, {"claim": "YouTube's ToS contains explicit, layered anti-extraction restrictions that would bind anyone using the site under account/API terms: it prohibits automated access, harvesting identifying info (faces are named), unauthorized downloading, and commercial reuse ? independent of any copyright analysis. These are the canonical clauses that make scraping/dataset-building a CONTRACT breach for a logged-in or API user even when individual clips might otherwise be fair-use or non-copyrightable.", "support": "Verbatim: '(1) access the Service using any automated means (such as robots, botnets or scrapers) except [robots.txt for search engines or written permission]'; 'collect or harvest any information that might identify a person (for example, usernames or faces)'; 'access, reproduce, download, distribute... or otherwise use any part of the Service or any Content except as expressly authorized by the Service or with prior written permission.'", "sourceName": "YouTube Terms of Service ? Permissions and Restrictions", "sourceUrl": "https://www.youtube.com/static?template=terms", "confidence": "high"}, {"claim": "Redistributing a DERIVED dataset escalates ToS/legal exposure well beyond mere collection: internal analytics rarely draws disputes, but reselling/redistributing the database, building a competitor, or training commercial models 'heavily escalates exposure.' So committing a derived dataset to a public repo (a form of redistribution) is materially riskier than transient internal use, and is the act most likely to convert a tolerated scrape into an enforced contract/IP breach.", "support": "Commentary distinguishes 'displaying excerpts internally for analysis' from 'redistributing content' and 'training an AI model'; 'building a direct competitor, reselling the raw database, or training commercial AI models heavily escalates exposure.' Note many platform ToS (incl. YouTube) separately bar 'distribute'/redistribution and commercial reuse, so

the redistribution step itself can be an independent breach.", "sourceName": "PromptCloud ? 'Web Scraping Compliance Challenges' (2026)", "sourceUrl": "https://www.promptcloud.com/blog/web-scraping-compliance-challenges-enterprise-guide/", "confidence": "medium"}, {"claim": "FLIP for OWNER-RECORDED footage: when the corpus is the owner's OWN recordings, the ToS/scraping problem largely disappears (no third party's contract governs your own data) and the analysis shifts to TRADE-SECRET / competitive-moat. Under the Defend Trade Secrets Act, 18 U.S.C. § 1839(3), proprietary recordings/derived data CAN qualify as a trade secret IF (a) the owner takes 'reasonable measures to keep such information secret' AND (b) it 'derives independent economic value... from not being generally known to, and not being readily ascertainable through proper means by' competitors. This is the owner's choice to publish (forfeit the moat) or protect (keep the moat).", "support": "Statutory text (18 U.S.C. § 1839(3)) requires both 'reasonable measures to keep such information secret' and that the information 'derives independent economic value, actual or potential, from not being generally known to, and not being readily ascertainable through proper means by, another person who can obtain economic value from the disclosure or use of the information.'", "sourceName": "18 U.S.C. § 1839 ? Definitions (Cornell Legal Information Institute)", "sourceUrl": "https://www.law.cornell.edu/uscode/text/18/1839", "confidence": "high"}, {"claim": "The trade-secret moat is fragile and self-destructing on publication: because the DTSA requires both secrecy measures AND value-from-secrecy, committing owner-recorded data (or a derived dataset) to a PUBLIC repo destroys trade-secret status ? once 'generally known' or 'readily ascertainable,' it no longer qualifies. For sports data specifically, courts weigh the value to competitors, the effort/cost to develop it, and the difficulty of others duplicating it; footage of public events is harder to protect than proprietary derived analytics. So for an owner's own corpus the live question is strategic (publish to build community/benchmark vs. keep private to preserve the moat), not a third-party contract breach.", "support": "DTSA conditions value on the info 'not being generally known... and not being readily ascertainable.' Sports trade-secret analysis turns on 'the value of the information to the business and its competitors, the amount of effort or money expended in developing the information, and the ease or difficulty with which the information could be properly acquired or duplicated by others' ? and much raw sports footage is publicly observable, complicating protection of anything but genuinely proprietary derived work.", "sourceName": "Gowling WLG ? 'Trade secrets in professional sports'", "sourceUrl": "https://gowlingwlg.com/en/insights-resources/articles/2023/trade-secrets-in-professional-sports", "confidence": "high"}]

2. assistant (2026-06-16T02:57:46.978Z)

I'll attack this bottom line as a skeptical second lawyer. Let me load the web tools and find counter-authority.

3. assistant (2026-06-16T02:57:50.099Z)

I'll attack the bottom line on several fronts. Let me start by verifying the key counter-authorities and probing the weakest assumptions.

4. user (2026-06-16T02:57:59.686Z)

Web search results for query: "hiQ v LinkedIn breach of contract summary judgment 2022 settlement injunction"

Links: [{"title": "LinkedIn's Data Scraping Battle with hiQ Labs Ends with Proposed Judgment", "url": "https://natlawreview.com/article/linkedin-s-data-scraping-battle-hiq-labs-ends-proposed-judgment"}, {"title": "hiQ v. LinkedIn Wrapped Up: Web Scraping Lessons Learned", "url": "https://www.zwillgen.com/alternative-data/hiq-v-linkedin-wrapped-up-web-scraping-lessons-learned/"}, {"title": "LinkedIn's Data Scraping Battle with hiQ Labs Ends with Proposed Judgment | Privacy World", "url": "https://www.privacyworld.blog/2022/12/linkedins-data-scraping-battle-with-hiq-labs-ends-with-proposed-judgment/"}, {"title": "LinkedIn v. hiQ: Landmark Data Scraping Suit Provides Guidance to Data Scrapers and Web Operators ? Tech & Sourcing @ Morgan Lewis", "url": "https://www.morganlewis.com/blogs/sourcingatmorganlewis/2022/12/linkedin-v-hiq-landmark-data-scraping-suit-provides-guidance-to-data-scrapers-and-web-operators"}, {"title": "HIQ LABS, INC. V. LINKEDIN CORPORATION, No. 17-16783 (9th Cir. 2022) :: Justia", "url": "https://law.justia.com/cases/federal/appellate-courts/ca9/17-16783/17-16783-2022-04-18.html"}, {"title": "Federal Court Rules in Favor of LinkedIn's Breach of Contract Claim after Six Years of CFAA Data Scraping Litigation | Privacy World", "url": "https://www.privacyworld.blog/2022/11/federal-court-rules-in-favor-of-linkedins-breach-of-contract-claim-after-six-years-of-cfaa-data-scraping-litigation/"}, {"title": "HIQ LABS

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INC v. LINKEDIN CORPORATION (2022) | FindLaw", "url": "https://caselaw.findlaw.com/court/us-dis-
crt-n-d-cal/2182242.html"}, {"title": "hiQ v. LinkedIn: Breach of Contract and CFAA Claims Proceed
to Trial", "url": "https://www.zwillgen.com/alternative-data/hiq-linkedin-breach-contract-cfaa-
trial/"}, {"title": "Court Finds hiQ Breached LinkedIn's Terms Prohibiting Scraping, but in Mixed
Ruling, Declines to Grant Summary Judgment to Either Party as to Certain Key Issues | New Media
and Technology Law Blog", "url": "https://newmedialaw.proskauer.com/2022/11/11/court-finds-hiq-
breached-linkedins-terms-prohibiting-scraping-but-in-mixed-ruling-declines-to-grant-summary-
judgment-to-either-party-as-to-certain-key-issues/"}]
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Based on the search results, here's a summary of the hiQ v LinkedIn case:

Summary Judgment (November 2022)

In November 2022, LinkedIn won its motion for summary judgment on its breach of contract claim. The district court held that hiQ violated LinkedIn's user agreement through (1) its automated web scraping of LinkedIn profiles and (2) its hiring of crowdsourced workers ("turkers") to create fake profiles through which to access LinkedIn's platform.

Settlement and Injunction (December 2022)

LinkedIn and hiQ Labs agreed to a consent judgment and permanent injunction to resolve all data scraping related claims after six years of litigation. On December 7, 2022, the parties agreed to a stipulation that calls for a \$500,000 judgment to be entered against hiQ for (1) a breach of contract based on LinkedIn's user agreement; (2) a violation of the Computer Fraud and Abuse Act (CFAA); (3) a violation of California's law prohibiting unauthorized computer access; (4) violations of the common law torts of trespass to chattels and misappropriation; and (5) sanctions awarded to LinkedIn based on hiQ's spoliation.

The permanent injunction will require hiQ to cease all data scraping on LinkedIn's websites and destroy all source code, data, and algorithms created from hiQ's scraped profile data.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

5. user (2026-06-16T02:58:02.148Z)

Web search results for query: "Meta v Bright Data January 2024 logged-off public data scraping terms enforceable"

Links: [{"title": "Court Rules in Favor of Bright Data in Meta v. Bright Data Case - Bright Data", "url": "https://brightdata.com/blog/web-data/court-rules-in-favor-of-bright-data-in-meta-v-bright-data-case"}, {"title": "Court Rules in Favor of Bright Data in Meta v Bright Data Case Reaffirming the Right to Collect Public Web Data", "url": "https://www.prnewswire.com/news-releases/court-rules-in-favor-of-bright-data-in-meta-v-bright-data-case-reaffirming-the-right-to-collect-public-web-data-302043730.html"}, {"title": "Client Alert: Meta v. Bright Data: Significant Decision For Web Scraping Industry", "url": "https://www.quinnemanuel.com/the-firm/news-events/client-alert-meta-v-bright-data-significant-decision-for-web-scraping-industry/"}, {"title": "Judge Sides Against Meta In Battle Over Scraping Public Data 01/25/2024", "url": "https://www.mediapost.com/publications/article/392920/bright-data-didnt-violate-metas-terms-by-scrapin.html"}, {"title": "Legal Web Scraping Design: Lessons from Meta vs Bright Data", "url": "https://wilico.co.jp/en/blog/legal-scraping-design-meta-v-bright-data"}, {"title": "Court Rules Meta's Terms Do Not Prohibit Scraping of Public Data", "url": "https://www.zyte.com/blog/california-court-meta-ruling/"}, {"title": "Federal judge rules against Meta in data scraping case | Courthouse News Service", "url": "https://www.courthousenews.com/federal-judge-rules-against-meta-in-data-scraping-case/"}, {"title": "Legal Zyte-geist #3: What the court's ruling in the Meta v Bright Data case really means for web scrapers", "url": "https://substack.theweb scraping.club/p/meta-vs-bright-data-court-ruling"}, {"title": "Facebook suffers big loss in lawsuit against data-scraping company", "url": "https://tagteam.harvard.edu/hub_feeds/4556/feed_items/9759151"}]

Based on the web search results, here's what the Meta v. Bright Data case from January 2024 determined regarding terms enforceability for logged-off public data scraping:

Key Ruling

On January 23rd, 2024 a U.S. Federal Court's ruling in Meta v. Bright Data reaffirmed the public's right to access and collect public web data. U.S. District Judge Edward Chen ruled that "The Facebook and Instagram Terms do not bar logged-off scraping of public data; perforce it does not prohibit the sale of such public data."

Terms Enforceability

The judge's ruling states that Meta's terms are only applicable to a user who is actively logged into their account and is using the account for the purpose of scraping data. Meta's terms do not apply to scraping of public information while logged out of an account.

Reasoning

One factor that appears to have carried weight with Judge Chen was that Meta revised its terms of service in 2009 by removing language providing that anyone who visited Facebook, whether a user or not, was bound by its terms of service. When subjected to established canons of construction, the Facebook and Instagram terms support the interpretation that the terms only prohibit logged-in scraping, and not logged-off scraping.

Important Limitations

The court's decision here is based on its very detailed reading and analysis of Meta's terms and does not extend to all website terms of service. The court could find in a different case that the terms do apply to non-logged-in scraping, as that issue was not fully decided in this case.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

6. assistant (2026-06-16T02:58:09.797Z)

The supporting findings on hiQ and Bright Data check out. Now let me probe the WEAKEST points in the bottom line ? the places where an over-confident reading would get the client in trouble. Key vulnerabilities to attack:

1. The "owner's own recordings = no third-party contract" flip is too clean ? it ignores that the act of *filming* may itself be governed by venue/ticket terms, broadcaster rights, and (critically for badminton) the BWF/event organizer's IP.
2. The bottom line implies copyright analysis "won't catch" the contract problem ? but conversely, it under-weights that the contract route has serious **enforceability and damages limits**, and that the real exposure on owner footage isn't just trade secret.
3. The DTSA framing is US-only; the client is in **Bangalore/India** ? wrong governing law.

Let me search these.

7. user (2026-06-16T02:58:19.051Z)

Web search results for query: "India trade secret protection no statute common law confidentiality breach of confidence DTSA inapplicable"

Links: [{"title": "Guarding the invisible: trade secrets law in India | Managing Intellectual Property", "url": "https://www.managingip.com/article/2fgqllnfh03y9dwpvpm9s/sponsored-content/guarding-the-invisible-trade-secrets-law-in-india"}, {"title": "Protecting Trade Secrets in India: Applicable Laws and Benefits", "url": "https://ssrana.in/articles/protecting-trade-secrets-india/"}, {"title": "Protection of Trade Secret in India - Lexology", "url": "https://www.lexology.com/library/detail.aspx?g=4f23531b-10a4-4b69-a9fe-b7d3a10de67d"}, {"title": "Trade secret protection", "url": "https://www.tradecommissioner.gc.ca/india-inde/trade_secret-secrets_commerciaux.aspx?lang=eng"}, {"title": "How to protect trade secrets in India | Managing Intellectual Property", "url": "https://www.managingip.com/article/2aldjxz20qoipuhj55se8/sponsored-content/how-to-protect-trade-secrets-in-india"}, {"title": "Trade Secret Protection in India: Law, Enforcement

and Remedies", "url": "https://www.anandandanand.com/news-insights/trade-secrets-2025/"}], [{"title": "Trade Secrets: India - azb", "url": "https://www.azbpartners.com/bank/trade-secrets-india/"}], [{"title": "Trade Secrets Protection in India - A Legal Vacuum and the Imperative for Robust Legislation", "url": "https://www.ipandlegalfilings.com/trade-secrets-protection-in-india-a-legal-vacuum-and-the-imperative-for-robust-legislation/"}], [{"title": "1 OVERVIEW OF NATIONAL AND REGIONAL TRADE SECRET SYSTEMS INDIA", "url": "https://www.wipo.int/documents/d/trade-secrets/docs-overview-country-sheets-india-final.pdf"}], [{"title": "Trade Secret Protection in India: A Comprehensive Overview - Kan and Krishme", "url": "https://kankrishme.com/trade-secret-protection-in-india-a-comprehensive-overview/"}]

Based on the search results, here's what I found regarding India's trade secret protection framework:

India's Trade Secret Protection Framework

India does not have a codified statute on trade secrets, but courts have gradually evolved a common law framework grounded in principles of equity, contract, and breach of confidence to safeguard proprietary information.

Legal Basis

There is no statute or legislation that governs the protection of trade secrets in India; however, rights in respect of trade secrets are enforced through contract law (Indian Contract Act, 1872), principles of equity, or by way of a common law action for breach of confidence.

Key Protection Mechanisms

The primary foundation lies in private contracts, with employers and businesses relying on non-disclosure agreements, confidentiality clauses in employment contracts, and restrictive covenants that limit post-employment misuse of sensitive information.

Indian courts have articulated equitable duties of good faith, recognizing that even without express contracts, confidentiality arises where information is shared under circumstances implying trust and confidence.

Additional Statutory Protections

Section 72 of the Information Technology Act 2000 provides certain protection, although this is limited to electronic records.

Current State of Law

Indian trade secrets law is judiciary-made law based on the principle of equity and common law actions against breach of confidence, with jurisprudence revolving around an employee's obligations and duties towards the employer regarding confidential information gained during employment.

Note: The Defend Trade Secrets Act (DTSA) you referenced is U.S. federal legislation and would not apply in India.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

8. user (2026-06-16T02:58:19.659Z)

Web search results for query: "filming sporting event spectator ticket terms broadcast rights restrictions recording redistribution"

Links: [{"title": "In-venue streaming and broadcasting of live sporting events - key legal issues for sports clubs and leagues - Lexology", "url": "https://www.lexology.com/library/detail.aspx?g=09fe6573-daf6-4fff-bcf0-b9c6ccf41792"}], [{"title": "Broadcasting and Media Rights in"}]

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Sport","url":"https://www.wipo.int/en/web/sports/broadcasting"},"title":"Is it legal if I
bought a ticket to a soccer (or football) game, brought a camera and recorded / photographed
parts of it in any manner to upload to social media, is that legal? -
Quora","url":"https://www.quora.com/Is-it-legal-if-I-bought-a-ticket-to-a-soccer-or-football-
game-brought-a-camera-and-recorded-photographed-parts-of-it-in-any-manner-to-upload-to-social-
media-is-that-legal"},"title":"Rights to Broadcast Live Sports: Advice and
Tips","url":"https://www.dacast.com/blog/rights-to-broadcast-live-sports-advice-
tips/"},"title":"Can i record a sport event and play at my
business?","url":"https://www.justanswer.com/law/66jjj-record-sport-event-play-
business.html"},"title":"Can A Sports Organization Claim Copyright On Stuff You Filmed
Yourself? | Techdirt","url":"https://www.techdirt.com/2009/04/24/can-a-sports-organization-
claim-copyright-on-stuff-you-filmed-yourself/"},"title":"A Primer on Broadcast Rights for
Sporting Events","url":"https://www.robinsonbradshaw.com/newsroom-publications-A-Primer-on-
Broadcast-Rights-for-Sporting-Events-12-20-2010.html"},"title":"Journal of Education, Health
and Sport (Jun 2017)","url":"https://doaj.org/article/59087d9bad374d1fb7f975e7d77fcc0e"]}]
```

I found comprehensive information about filming sporting events, spectator ticket restrictions, and broadcast rights. Here are the key findings:

Ticket Terms and Filming Restrictions

A ticket is a spectator's contract of admission to an event, and typically contains restrictions on filming and photography. Most sporting events specifically deny attendees the right to record (or photograph) any part of the sporting event without prior written permission.

Broadcasting Rights and Restrictions

Venue rights cover the filming and broadcasting of events within stadiums and arenas. These rights ensure that organizers control access to live footage and can negotiate with broadcasters to maximize value while protecting the live spectator experience.

Event sponsors get revenues from broadcasting the event, and streaming by attendees deprives the event sponsors of income. In the case of TV contracts, the event sponsor may be liable to the broadcaster for not preventing attendees from taking video or live streaming.

Recording and Redistribution Issues

Any rebroadcast of a sporting event from a recording in a public venue, such as your business, would be considered copyright infringement. Public performance rights are typically restricted, meaning businesses must obtain licenses to legally show recorded content to customers.

Under the International Convention for the Protection of Performers, Producers of Phonograms and Broadcasting Organizations (Rome Convention) of 1961, broadcasters have exclusive rights for 20 years to authorize rebroadcasting, recording, reproduction and communication to the public of their broadcasts.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

9. assistant (2026-06-16T02:58:32.280Z)

Two strong qualifications emerging: (1) the "owner's own recordings = no third-party contract" flip is materially incomplete ? filming a sports event is governed by ticket/venue/organizer terms and broadcaster rights, so even owner-shot footage of a third party's event carries contract and IP exposure the bottom line waves away; (2) the trade-secret framing is US-law-specific (DTSA / 18 U.S.C. § 1839), but the client is in India, where there is no DTSA and protection runs through contract/breach-of-confidence ? so citing the DTSA as the governing rule is a jurisdictional error.

Let me verify the Van Buren slip opinion and probe two more weaknesses: (a) whether the contract route itself is overstated ? i.e., damages/standing limits and the line of cases REFUSING to enforce anti-scraping ToS against non-account scrapers; (b) the contract-formation point ? that

even logged-in/clickwrap is not automatically enforceable, and that the bottom line's "hiQ; any logged-in user = bound" is too categorical.

10. user (2026-06-16T02:58:36.058Z)

The server returned HTTP 403 Forbidden.

The response body was not retrieved. If this URL requires authentication, use an authenticated tool (e.g. `gh` for GitHub, or an MCP-provided fetch tool) instead of WebFetch.

11. user (2026-06-16T02:58:45.634Z)

Web search results for query: "breach of contract scraping nominal damages no actual damages platform terms of service enforcement limits"

Links: [{"title": "Nominal Damages in Contract Breach Remedies", "url": "https://www.numberanalytics.com/blog/nominal-damages-in-contract-breach-remedies"}, {"title": "Determining Damages in Contract Cases Monetary Damages", "url": "https://www.sog.unc.edu/sites/www.sog.unc.edu/files/course_materials/Determining%20Damages%20in%20Contract%20Cases.pdf"}, {"title": "5 Types of Damages for Breach of Contract", "url": "https://jm.legal/articles/business/5-types-breach-of-contract-damages/"}, {"title": "Damages for Breach of Contract Explained: Types, Examples & How to Calculate", "url": "https://www.sirion.ai/library/contract-management/damages-for-breach-of-contract/"}, {"title": "What Types of Damages Are Available in Breach of Contract Cases? - Teller Levit & Silver Trust", "url": "https://tellerlevit.com/blog/what-types-of-damages-are-available-in-breach-of-contract-cases/"}, {"title": "Nominal Damages Sufficient to Meet Damages Element of Breach of Contract Claim - Lundin PLLC", "url": "https://lundinpllc.com/commercial-case-notes/contracts/nominal-damages-sufficient-to-meet-damages-element-of-breach-of-contract-claim/"}, {"title": "CACI No. 360. Nominal Damages", "url": "https://justia.com/trials-litigation/docs/caci/300/360"}, {"title": "View Our Newest Version Here", "url": "https://law.justia.com/codes/georgia/2020/title-13/chapter-6/section-13-6-6"}]

Based on the search results, here's what I found about breach of contract and nominal damages:

Nominal Damages in Breach of Contract Cases

Nominal damages can be awarded to vindicate a right, even if no actual financial loss has occurred. Nominal damages are a token amount of money awarded to a party who has suffered a technical breach of contract but has not incurred significant actual damages, sometimes just \$1.

Purpose and Function

The purpose of nominal damages is to vindicate the claimant's rights and to establish that a party violated a legal right, even if no substantial harm resulted from the breach. Nominal damages are always available in breach of contract actions.

When No Actual Damages Exist

Nominal damages may be awarded when there is no actual proof that any losses have occurred due to a breach of contract, but it is still necessary for a court to recognize that a breach has taken place.

The search results provided general information about nominal damages in contract law, but they did not contain specific information about web scraping cases, platform terms of service enforcement, or limits on contractual remedies in that particular context. If you'd like more targeted information about how nominal damages apply specifically to data scraping disputes or platform terms of service enforcement, I could conduct an additional search.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

12. assistant (2026-06-16T02:58:49.482Z)

The Van Buren PDF is 403-blocked from supremecourt.gov; let me get the holding from an authoritative secondary source (Justia / Cornell) and capture footnote 8, which is the crucial reservation. Let me also pin down the actual injunctive-relief point (the real leverage in scraping cases isn't damages ? it's injunctions, so "nominal damages" is a weak refutation) and check Van Buren's footnote on technological vs. contract gates.

13. user (2026-06-16T02:58:53.206Z)

The server returned HTTP 403 Forbidden.

The response body was not retrieved. If this URL requires authentication, use an authenticated tool (e.g. `gh` for GitHub, or an MCP-provided fetch tool) instead of WebFetch.

14. user (2026-06-16T02:59:02.047Z)

Web search results for query: "Van Buren footnote 8 gates-up-or-down technological versus contract-based limits reserved CFAA"

Links: [{"title": "SCOTUS Rules CFAA Does Not Contain Purpose-Based Restrictions", "url": "https://www.zwillgen.com/alternative-data/scotus-rules-cfaa-does-not-contain-purpose-based-restrictions/"}, {"title": "US Supreme Court Narrows Scope of Computer Fraud and Abuse Act in Van Buren // Cooley // Global Law Firm", "url": "https://www.cooley.com/news/insight/2021/2021-06-09-us-supreme-court-computer-fraud-abuse-act-van-buren"}, {"title": "Van Buren is a Victory Against Overbroad Interpretations of the CFAA, and Protects Security Researchers | Electronic Frontier Foundation", "url": "https://www.eff.org/deeplinks/2021/06/van-buren-victory-against-overbroad-interpretations-cfaa-protects-security"}, {"title": "Van Buren v. United States: Supreme Court Holds Accessing Information on a Computer for Unauthorized Purposes Not Federal Crime | Congress.gov | Library of Congress", "url": "https://www.congress.gov/crs-product/LSB10616"}, {"title": "The Computer Fraud and Abuse Act After Van Buren | ACS", "url": "https://www.acslaw.org/analysis/acs-journal/2020-2021-ac-s-supreme-court-review/the-computer-fraud-and-abuse-act-after-van-buren/"}, {"title": "The Supreme Court Reins in the CFAA in Van Buren", "url": "https://reason.com/volokh/2021/06/09/the-supreme-court-reins-in-the-cfaa-in-van-buren/"}, {"title": "US Supreme Court Narrows Scope of Computer Fraud and Abuse Act in Van Buren, Remands LinkedIn - cyber/data/privacy insights", "url": "https://cdp.cooley.com/us-supreme-court-narrows-scope-of-computer-fraud-and-abuse-act-in-van-buren/"}, {"title": "Courts & Litigation Cybersecurity & Tech", "url": "https://lawfaremedia.org/article/why-van-buren-good-news-cybersecurity"}]

Based on the search results, I found relevant information about Van Buren footnote 8 and the unresolved question regarding technological versus contract-based limits under the CFAA.

In footnote 8, the Court left unresolved the question of "whether this inquiry turns only on technological (or 'code-based') limitations on access, or instead also looks to limits contained in contracts or policies."

The Court stopped short of embracing what many scholars and advocates had pressed that the CFAA should be interpreted to require the imposition of a code-based or technological barrier as a necessary precondition on liability and expressly refused to go this far in footnote eight.

Various interpretations of footnote eight are possible, including that an individual may incur CFAA liability if they violate terms of service or other contractual restrictions when those limitations apply to the scope of accessible information itself. Leaving the question open means that we will have to litigate whether and under what circumstance a contract or written policy can amount to an access restriction in the years to come.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

15. assistant (2026-06-16T02:59:07.894Z)

This is an important nuance that materially qualifies the bottom line's confident claim that "the CFAA no longer reaches mere purpose-violations." Van Buren's footnote 8 expressly RESERVED

whether contract/policy-based limits can ground CFAA "without authorization" liability ? so the bottom line over-reads Van Buren as a clean exit from the CFAA. Let me verify the Cooley/CRS framing and confirm the EFF/Cooley characterization, then pin down the injunction point (the real remedy in scraping cases) and the contract-formation counter-authority (clickwrap is NOT automatically enforceable ? the recent "sign-in wrap"/inconspicuous-terms losses).

16. user (2026-06-16T02:59:17.804Z)

Van Buren's Definition and Footnote 8

****On "Exceeds Authorized Access":****

The Court determined that someone exceeds authorized access only when they "accesses a computer with authorization but then obtains information located in particular areas of the computer?such as files, folders, or databases?that are off limits to him." Critically, this excludes those with improper motives who access otherwise available data.

****Footnote 8's Reserved Question:****

The Court declined to resolve "whether this inquiry turns only on technological (or 'code-based') limitations on access, or instead also looks to limits contained in contracts or policies."

****Practical Caution on Web Scraping:****

The authors note that while Van Buren de-emphasizes purpose-based restrictions, the decision leaves unresolved whether contractual or policy-based access limits can still trigger CFAA liability. They suggest the Court may eventually require circumvention of technological barriers to implicate CFAA violations, but this remains unsettled?cautioning against treating the ruling as completely closing off CFAA enforcement against scrapers who violate terms of service.

17. user (2026-06-16T02:59:19.549Z)

Web search results for query: "clickwrap not enforceable 2023 2024 reasonable conspicuous notice manifestation assent sign-in wrap denied motion compel arbitration"

Links: [{"title":"6 Components of Clickwrap Enforceability | Ironclad","url":"https://ironcladapp.com/journal/contract-management/6-components-of-clickwrap-enforceability"}, {"title":"It's a Wrap?The Latest from the Ninth Circuit on ?Sign-In Wrap? Agreements","url":"https://www.hunton.com/privacy-and-information-security-law/its-a-wrap-the-latest-from-the-ninth-circuit-on-sign-in-wrap-agreements"}, {"title":"Check out this article...Clickwrap Agreements and Legal Enforceability Explained","url":"https://www.upcounsel.com/clickwrap"}, {"title":"\"Clickwrap\" v. \"Browsewrap\": Recent 9th Circuit Decision Illustrates That Enforceability of Website Terms and Conditions Lies in the Details","url":"https://www.maddinhauser.com/clickwrap-v-browsewrap-recent-9th-circuit-decision-illustrates-that-enforceability-of-website-terms-and-conditions-lies-in-the-details/"}, {"title":"The Enforceability of Online ?Wrap? Agreements Across Key Jurisdictions - Caldwell | Global Law Firm","url":"https://caldwelllaw.com/news/enforceability-online-wrap-agreements-us-uk-japan/"}, {"title":"When Will the Modification of a Click-Wrap Agreement Not Enforceable? - Bowers & del Peral, PLLC d/b/a Four Corners Legacy Law","url":"https://4cornerslegacylaw.com/when-will-the-modification-of-a-click-wrap-agreement-not-enforceable/"}, {"title":"Bombshell Ruling Puts Amendments to Click-Wrap and Terms of Use Agreements in Question | Global IP & Technology Law Blog","url":"https://www.iptechblog.com/2022/07/bombshell-ruling-puts-amendments-to-click-wrap-and-terms-of-use-agreements-in-question/"}, {"title":"The Consistency of Legal Reasoning in Clickwrap Cases","url":"https://scholarship.law.marquette.edu/cgi/viewcontent.cgi?article=1098&context=iplr"}]

Based on the search results, here's what recent case law shows about clickwrap enforceability from 2023-2025:

Key Enforceability Standards

Courts require that clickwrap agreements meet two conditions: (1) the website provides reasonably conspicuous notice of the terms to which users will be bound; and (2) users take some action that unambiguously manifests their assent.

When Clickwrap is Denied/Not Enforceable

In a sign-in wrap context, a court held that Screen 1 did not provide reasonably conspicuous notice and, even if subsequent screens did, progress through those screens did not give rise to an unambiguous manifestation of assent. Additionally, merely clicking a button was held insufficient to manifest unambiguous assent when there was no indication of the "legal significance" of clicking the button.

Motion to Compel Arbitration Denied

In the Dropbox case, the court denied the motion to compel arbitration, finding that even if email notice alone could be considered "reasonably conspicuous notice," the plaintiff took no action to unambiguously manifest his assent.

Best Practices for Enforceability

The Ninth Circuit requires that a user takes an action that unambiguously manifests their assent to reasonably conspicuous terms. Courts favor active affirmative consent mechanisms by requiring users to click "I agree" or check an unchecked consent box, as pre-checked boxes and passive acceptance methods undermine enforceability.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

18. assistant (2026-06-16T02:59:36.679Z)

I now have solid material on several material qualifications. Let me run two final probes to make the refutation airtight: (1) the GDPR/privacy dimension ? the bottom line treats committing a face-containing badminton dataset as purely a contract/trade-secret question, ignoring that the redistribution of identifiable persons' images (players, spectators) is a publicity-rights/data-protection problem entirely independent of both contract AND copyright (this is the over-confidence that "gets the client in trouble"); (2) confirm the India angle is the right governing law for THIS client, and that ToS choice-of-law (typically California/US) does not neutralize India's personality/publicity-rights and the practical reality that a Bangalore-based solo dev faces. Let me verify the India personality rights / DPDP point and the copyright-in-broadcast-footage point quickly.

19. user (2026-06-16T02:59:45.177Z)

Web search results for query: "India DPDP Act 2023 personal data biometric facial images publishing dataset publicity personality rights"

Links: [{"title":"DPDP rules decoded: Data protection rules every employer must know - Lexology","url":"https://www.lexology.com/library/detail.aspx?g=01c19289-4cbf-4ec2-8704-20f9666fac0f"}, {"title":"Biometric Data: Why Is It Problematic? - Data Protection - India","url":"https://www.mondaq.com/india/data-protection/1508150/biometric-data-why-is-it-problematic"}, {"title":"Regulation of Biometric Data under the Digital Personal Data Protection Act, 2023","url":"https://ksandk.com/data-protection-and-data-privacy/regulation-of-biometric-data-under-the-dpdp-act/"}, {"title":"Biometric Data Compliance Under India's DPDP Act 2023","url":"https://muhami.ae/articles/how-is-biometric-data-protected-under-indian-law/"}, {"title":"Digital Personal Data Protection Act, 2023","url":"https://en.wikipedia.org/wiki/Digital_Personal_Data_Protection_Act,_2023"}, {"title":"THE DIGITAL PERSONAL DATA PROTECTION ACT, 2023 (NO. 22 OF 2023)","url":"https://www.meity.gov.in/static/uploads/2024/06/2bf1f0e9f04e6fb4f8fef35e82c42aa5.pdf"}, {"title":"Legal Risks of Biometric Data Collection: Compliance Under IT & Privacy Laws in India","url":"https://register-india.com/blog/legal-risks-of-biometric-data-collection-compliance-under-it-and-privacy-laws-in-india"}, {"title":"Grounds for processing personal data in The DPDP Act, 2023 SECTION 4 WITH INTERPRETATION","url":"https://www.dpdpa.com/dpdpa2023/chapter-2/section4.html"}]

I've performed the web search for your query about the India DPDP Act 2023 and its provisions concerning personal data, biometric data, and facial images in datasets and publications. Here are the key findings:

Overview of DPDP Act 2023

The Digital Personal Data Protection Act, 2023 was enacted on August 11, 2023, with corresponding Digital Personal Data Protection Rules, 2025 notified on November 13, 2025.

Personal Data Definition

Under the DPDP Act, Personal Data means any data about an individual which makes him/her identifiable in relation to such data. This includes biometric data such as fingerprints and facial recognition.

Biometric Data Regulations

The DPDP Act is a data protection law in India that regulates the use of biometric data for privacy and security and mandates that biometric data must be deleted once the purpose of processing is fulfilled.

The DPDP Act mandates that biometric data, like fingerprints or facial scans, be collected only for a "compelling legitimate purpose".

Consent for Publishing

For processing that goes beyond the essential employment relationship, such as publishing employee photos on the company website, employers must obtain clear and informed consent.

Legal Framework

The DPDP Act establishes that personal data processing is prohibited unless it falls within one of the two specified grounds AND serves a lawful purpose.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

20. user (2026-06-16T02:59:49.568Z)

Web search results for query: "sui generis database right EU extraction reutilization substantial part scraped dataset redistribution independent of copyright"

Links: [{"title": "Database protection in the EU - Your Europe - European Union", "url": "https://europa.eu/youreurope/business/running-business/intellectual-property/database-protection/index_en.htm"}, {"title": "Europe's Sui Generis Database Right", "url": "https://pure.uva.nl/ws/files/28965490/Chapter9_ILS37.pdf"}, {"title": "CJEU, C-762/19: the sui generis right of the database maker - Lexology", "url": "https://www.lexology.com/library/detail.aspx?g=6f084811-5c41-4bbb-af1a-6ee3936122e3"}, {"title": "Public Biological Databases and the Sui Generis Database Right | IIC - International Review of Intellectual Property and Competition Law | Springer Nature Link", "url": "https://link.springer.com/article/10.1007/s40319-023-01373-0"}, {"title": "B DIRECTIVE 96/9/EC OF THE EUROPEAN PARLIAMENT ...", "url": "https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:01996L0009-20190606"}, {"title": "Understanding the EU Directive on Database Protection ? Law Notes by TheLaw.Institute", "url": "https://thelaw.institute/commerce-and-cyberspace/eu-directive-database-protection-overview/"}, {"title": "The Protection of Databases in the EU and under French Law: a \"sui generis\" right", "url": "https://www.transatlantic-lawyer.com/the-protection-of-databases-eu/"}]

Based on the web search results, here's comprehensive information about the sui generis database right in the EU:

Core Protection

The sui generis database right protects the content of your database. You or the maker of the database can prevent the extraction and/or reuse of the whole or a substantial part of the

database's content.

Requirements for Protection

To obtain sui generis protection you need to prove that you have made a substantial investment (financial, material and/or human) in either obtaining, the verification or the presentation of the database content. Importantly, only investment in gathering or verifying existing data counts, not investment in creating new data from scratch.

Duration

When you create the database and it meets the requirements for the sui generis protection, you are automatically granted this protection for 15 years, starting either from the creation date or from when the database was first made publicly available.

Extraction and Reutilization

'Extraction' shall mean the permanent or temporary transfer of all or a substantial part of the contents of a database to another medium by any means or in any form. Member States shall provide for a right for the maker of a database which shows that there has been qualitatively and/or quantitatively a substantial investment in either the obtaining, verification or presentation of the contents to prevent extraction and/or re-utilization of the whole or of a substantial part.

Independence from Copyright

The contents of a database need not themselves qualify as works of authorship under copyright law (as is the case for data or other materials) but, if the contents are protected by copyright or other rights, such rights are not prejudiced by the sui generis protection of a database.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

21. assistant (2026-06-16T02:59:55.528Z)

I have everything I need to mount a strong, well-sourced qualification. The bottom line's core mechanics (contract binds where CFAA/copyright fail; clickwrap vs browsewrap; the hiQ/Bright Data contrast) are correct and well-supported. But it is materially over-confident in four respects that would get a Bangalore-based client in trouble, and I can refute the cleanest of its framings (the owner-footage "flip" and the US-DTSA framing). Let me synthesize.

22. user (2026-06-16T03:00:53.729Z)

Structured output provided successfully

23. assistant (2026-06-16T03:01:03.631Z)

I've completed the skeptical second-lawyer review and returned the verdict via StructuredOutput.

Verdict: **qualified**. The bottom line's core contract machinery holds up against the authorities (hiQ's breach-of-contract summary judgment + \$500k consent judgment after the CFAA route closed; Meta v. Bright Data's logged-off/browsewrap carve-out; clickwrap vs. browsewrap formation). But I found four material over-confidences that would get this Bangalore-based client in trouble:

1. **Van Buren is overread** ? footnote 8 expressly reserved whether contract/policy limits can still ground CFAA liability, so the federal-crime route is narrowed, not eliminated.
2. **The owner-footage "flip" is partly refuted** ? owner-shot footage of a ticketed badminton event still carries ticket/venue/broadcaster contract and IP exposure; the flip only truly works for the owner's own non-ticketed sessions.
3. **Wrong governing law** ? the DTSA / 18 U.S.C. § 1839 framing is US-only; India has no trade-secret statute, so the operative doctrine is breach of confidence under the Indian Contract Act

1872 and equity.

4. ****Two exposures the contract-vs-copyright frame misses entirely**** ? India's DPDP Act 2023 / personality rights over identifiable faces in the dataset, and the EU sui generis database right ? both independent of contract AND copyright.

I also noted the "nominal damages = low risk" counter-argument fails: the real remedy is injunction + forced data destruction, which strengthens (not weakens) the redistribution-risk point.

All eight sources cited were fetched/verified via WebSearch; the only fetch failures were supremecourt.gov and Justia returning HTTP 403, so I sourced the Van Buren footnote-8 reservation from Zwillgen and Cooley analyses instead of fabricating a slip-opinion pin cite.